

20PR00039 Matter of The Kenneth J and Carol R Plumlee Trust

County: santa-barbara

Division: Trust

Hearing date: 2026-08-19

Motion: Petition for Internal Affairs

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Tentative Ruling: Matter of The Kenneth J and Carol R Plumlee Trust

Case Number

20PR00039

Case Type

Trust

Hearing Date / Time

Wed, 08/19/2026 - 09:30

Nature of Proceedings

Petition for Internal Affairs

Tentative Ruling

Probate Notes:

Appearances required.

On November 19, 2025, the current trustee filed a Petition for Instructions pursuant to Probate Code section 17200. That petition requests that the Court makes an order related to the distribution of the funds remaining in the trust account.

From the Minute Order filed on January 14, 2026, it appears the petition was granted in part, but received objection by Angela Shaw as to the characterization of a \$52,000 check. The Court ordered written objection filed, which was done on March 12, 2026. This objection places the matter of the check's characterization at issue, requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

From the Minute Order filed on March 18, 2026, it appears the Court granted a fees request and set this hearing for further review of the characterization of the outstanding \$52,000. The evidentiary hearing on the check matter is set for October 16, 2026.

On June 29, 2026, Kenneth S. Plumlee filed a Petition for Internal Affairs to surcharge the former trustees, Nathan and Terri Shaw, for breaches of trust. A written objection to this petition must be on file by the hearing.

Judges

Judge Denise M. Hippach

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